

OFFICE OF THE SECRETARY

P.O. Box 942883

Sacramento, CA 94283-0001

JUN 28 2018

Honorable Janice Claire Croft
Judge of the Superior Court
County of Los Angeles
150 West Commonwealth Avenue
Alhambra, CA 91801

Re: Bolanos, Antonio Olvin
CDC No.: G60527
Case No.: GA070933 - 02
Date of Sentence: April 13, 2009

Dear Honorable Janice Claire Croft:

The purpose of this letter is to provide the court with authority to resentence Antonio Olvin Bolanos pursuant to Penal Code Section 1170, subdivision (d). This section provides that, upon recommendation of the Secretary of the California Department of Corrections and Rehabilitation, the court may recall a previously ordered sentence and commitment, and resentence the defendant in the same manner as if he or she had not previously been sentenced, provided the new sentence is no greater than the initial sentence.

Inmate Bolanos was sentenced in 2009, and was convicted of section 245, subdivision (A)(1), Assault W/Deadly Weapon. The trial court sentenced inmate Bolanos on April 13, 2009. At sentencing, the trial court imposed two sentence enhancements: 12022.7 and 186.22, subdivision (b)(1)(C). Both sentence enhancements were attached to Inmate Bolanos's section 245 offense. (See attached abstract.)

In light of the above, please consider *People v. Gonzalez* ((2009) 178 Cal.App.4th 1325. In *People v. Gonzalez*, the appellate court held the trial court should not have imposed sentence enhancements under section 12022.7, subdivision (a) and section 186.22, subdivision (b)(1)(C) because both sentence enhancements were based on the great bodily injury the defendant caused while committing the underlying offense. (*Id.* at p. 1332.)

Based on the above facts and case law, it appears that inmate Bolanos's sentence warrants the attention of the court. Pursuant to Section 1170, subdivision (d), as the Secretary, I recommend the inmate's sentence be recalled and that he be resented in accordance with the cited authority.

Sincerely,


SCOTT KERNAN
Secretary

Enclosures:

Abstract of Judgment-Prison Commitment-Determinate
Minute Order
Felony Information

cc: Honorable Daniel J. Buckley, Los Angeles County Presiding Judge
Los Angeles District Attorney
Private Attorney



460527
ABSTRACT OF JUDGMENT - PRISON COMMITMENT - DETERMINATE
SINGLE, CONCURRENT, OR FULL-TERM CONSECUTIVE COUNT FORM
[Not to be used for multiple count convictions or for 1/3 consecutive sentences]

666527
9.14.15
549 PM
CR-290.1

SUPERIOR COURT OF CALIFORNIA, COUNTY OF: LOS ANGELES		
PEOPLE OF THE STATE OF CALIFORNIA vs. DEFENDANT: BOLANOS, OLVIN ANTONIO AKA: MENACE CII NO.: A24697489 BOOKING NO.: 9941702		DOB: 05-07-89 ☐ NOT PRESENT
COMMITMENT TO STATE PRISON ABSTRACT OF JUDGMENT		☐ AMENDED ABSTRACT
DATE OF HEARING 04-13-09	DEPT. NO. NE H	JUDGE JANICE CLAIRE CROFT
CLERK DONNA CORDELL	REPORTER SUSAN L VELASQUEZ	PROBATION NO. OR PROBATION OFFICER X-1987694 ☐ IMMEDIATE SENTENCING
COUNSEL FOR PEOPLE ALICE MILRUD		COUNSEL FOR DEFENDANT JACK JANOFFSKY, PVT ☐ APPTD.

ENTERED
IN DOBIS

1. Defendant was convicted of the commission of the following felony:

COUNT	CODE	SECTION NUMBER	CRIME	YEAR CRIME COMMITTED	DATE OF CONVICTION (MO./DATE/YEAR)	JURY	COURT	PLEA	TERM (L, M, U)	TIME IMPOSED
02	PC	245(A)(1)	ASSAULT W/DEADLY WEAPON	2007	03-17-09			X	L	2 YRS. 0 MOS.

2. ENHANCEMENTS charged and found to be true TIED TO SPECIFIC COUNTS (mainly in the PC 12022 series). List each count enhancement horizontally. Enter time imposed for each or "S" for stayed. DO NOT LIST ANY STRICKEN ENHANCEMENT(S).

COUNT	ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	TOTAL
186.	10	12022.7	3				13 0

3. ENHANCEMENTS charged and found to be true FOR PRIOR CONVICTIONS OR PRISON TERMS (mainly in the PC 667 series). List all enhancements horizontally. Enter time imposed for each or "S" for stayed. DO NOT LIST ANY STRICKEN ENHANCEMENT(S).

ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	TOTAL

4. ☐ Deft. sentenced per: ☐ PC 667(b)-(i) or PC 1170.12 (two strikes) ☐ PC 1170(a)(3). Pre-confinement credits equal or exceed time imposed. (Paper Commitment.) Deft. ordered to report to local Parole Office upon release.

5. FINANCIAL OBLIGATIONS (plus any applicable penalty assessments): ☒ Court Security Fee of \$ 20.00 per PC 1465.8.

Restitution Fine(s): \$ 200.00 per PC 1202.4(b) forthwith per PC 2085.5; \$200.00 per PC 1202.45 suspended unless parole is revoked.
\$ _____ per PC 1202.44 is now due, probation having been revoked.

Restitution per PC 1202.4(f): ☐ \$ _____ / ☐ Amount to be determined to ☐ victim(s)* ☐ Restitution Fund
☐ *Victim name(s), if known, and amount breakdown in item 8 below. ☐ *Victim name(s) in probation officer's report.

Fine(s): \$ _____ per PC 1202.5. \$ _____ per VC 23550 or _____ days ☐ county jail ☐ prison in lieu of fine ☐ concurrent ☐ consecutive
☐ Includes: ☐ \$50 Lab Fee per HS 11372.5(a) ☐ \$ _____ Drug Program Fee per HS 11372.7(a) for each qualifying offense.

6. TESTING: a. ☐ Compliance with PC 296 verified b. ☒ DNA per PC 296 c. ☐ AIDS per PC 1202.1 d. ☐ other (specify): _____

7. IMMEDIATE SENTENCE: ☐ Probation to prepare and submit a post-sentence report to CDCR per PC 1203c. Deft's Race/Nat'l Origin HIS

8. Other orders (specify): THE COURT RECOMMENDS A FACILITY WHERE DEF CAN CONTINUE HIS EDUCATION. DEF TO PAY \$30.00 CRIMINAL CONVICTION FEE.

9. TOTAL TIME IMPOSED EXCLUDING COUNTY JAIL TERM: 15 0

10. ☐ This sentence is to run concurrent with (specify):

11. Execution of sentence imposed: a. ☒ at initial sentencing hearing. b. ☐ at resentencing per decision on appeal. c. ☐ after revocation of probation.
d. ☐ at resentencing per recall of commitment. (PC 1170(d).) e. ☐ other (specify):

DATE SENTENCE PRONOUNCED 04-13-09	CREDIT FOR TIME SPENT IN CUSTODY 664	TOTAL DAYS INCLUDING: 664	ACTUAL LOCAL TIME 578	LOCAL CONDUCT CREDITS 86	☐ 4019 ☐ 2933.1	TIME SERVED IN STATE INSTITUTION: DMH CDCR CRC
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13. The defendant is remanded to the custody of the sheriff ☒ forthwith LUS after 48 hours excluding Saturdays, Sundays, and holidays.
To be delivered to ☒ the reception center designated by the director of the California Department of Corrections and Rehabilitation.
☐ Other (specify):

CLERK OF THE COURT: I hereby certify the foregoing to be a correct abstract of the judgment made in this action.

DEPUTY'S SIGNATURE M. TRAEGER	DATE 04-21-09
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This form is prescribed under PC 1213.5 to satisfy the requirements of PG 1213 for determinate sentences. Attachments may be used but must be referred to in this document.

MINUTE ORDER
SUPERIOR COURT OF CALIFORNIA, COUNTY OF LOS ANGELES

DATE PRINTED: 04/13/09

CASE NO. GA070933

THE PEOPLE OF THE STATE OF CALIFORNIA
VS.
DEFENDANT 02: OLVIN ANTONIO BOLANOS

INFORMATION FILED ON 11/20/07.

COUNT 01: 664-187(A) PC FEL
COUNT 02: 245(A)(1) PC FEL
COUNT 03: 245(A)(2) PC FEL
COUNT 04: 245(A)(2) PC FEL
COUNT 05: 245(A)(2) PC FEL
COUNT 06: 245(A)(2) PC FEL

ON 04/13/09 AT 830 AM IN NORTHEAST DISTRICT DEPT NEH

CASE CALLED FOR PROBATION AND SENTENCE HEARING

PARTIES: JANICE CLAIRE CROFT (JUDGE) DONNA CORDELL (CLERK)
SUSAN L. VELASQUEZ (REP) ALICE MILRUD (DA)

DEFENDANT IS PRESENT IN COURT, AND REPRESENTED BY JACK JANOFKY PRIVATE COUNSEL
AS TO COUNT (02):

COURT ORDERS PROBATION DENIED.

SERVE 15 YEARS IN ANY STATE PRISON

COURT SELECTS THE LOW TERM OF 2 YEARS AS TO COUNT 02.

PLUS 13 YEARS PURSUANT TO SECTION SEE COMMENTS

DEFENDANT GIVEN TOTAL CREDIT FOR 664 DAYS IN CUSTODY 578 DAYS ACTUAL CUSTODY
AND 86 DAYS GOOD TIME/WORK TIME

PLUS \$20.00 COURT SECURITY ASSESSMENT (PURSUANT TO 1465.8(A)(1) P.C.)

\$30.00 CRIMINAL CONVICTION ASSESSMENT (PURSUANT TO 70373 G.C.)

TOTAL DUE: \$50.00

IN ADDITION:

-THE DEFENDANT IS TO PAY A RESTITUTION FINE PURSUANT TO SECTION

CASE NO. GA070933
DEF NO. 02

DATE PRINTED 04/13/09

1202.4(B) PENAL CODE IN THE AMOUNT OF \$ 200.00.

-DEFENDANT IS TO PAY A PAROLE RESTITUTION FINE, PURSUANT TO PENAL CODE SECTION 1202.45, IN THE AMOUNT OF \$ 200.00. SAID FINE IS STAYED AND THE STAY IS TO BECOME PERMANENT UPON SUCCESSFUL COMPLETION OF PAROLE.

-THE COURT ADVISES THE DEFENDANT OF PAROLE RIGHTS.

COURT ORDERS AND FINDINGS:

-PURSUANT TO PC SECTION 296, THE DEFENDANT IS ORDERED TO PROVIDE BUCCAL SWAB SAMPLES, A RIGHT THUMB PRINT, A FULL PALM PRINT

IMPRESSION OF EACH HAND, ANY BLOOD SPECIMENS OR OTHER BIOLOGICAL SAMPLES AS REQUIRED BY THIS SECTION FOR LAW ENFORCEMENT IDENTIFICATION.

DEFENDANT SENTENCED TO AN ADDITIONAL 10 YEARS IN STATE PRISON PURSUANT TO PENAL CODE SECTION 186.22(B)(1)(C) AND AN ADDITIONAL 3 YEARS PURSUANT TO PENAL CODE SECTION 12022.7. FOR A TOTAL OF 15 YEARS IN STATE PRISON.

THE COURT RETAINS JURISDICTION OVER RESTITUTION TO THE VICTIM.

THE COURT RECOMMENDS DEFENDANT BE HOUSED AT A FACILITY WHERE HE CAN CONTINUE HIS EDUCATION.

COUNT (02): DISPOSITION: CONVICTED

REMAINING COUNTS DISMISSED.

COUNT (01): DISMISSED DUE TO PLEA NEGOTIATION
COUNT (03): DISMISSED DUE TO PLEA NEGOTIATION
COUNT (04): DISMISSED DUE TO PLEA NEGOTIATION

COUNT (05): DISMISSED DUE TO PLEA NEGOTIATION
COUNT (06): DISMISSED DUE TO PLEA NEGOTIATION

DMV ABSTRACT NOT REQUIRED

NEXT SCHEDULED EVENT:
PROCEEDINGS TERMINATED

MINUTE ORDER
SUPERIOR COURT OF CALIFORNIA, COUNTY OF LOS ANGELES

DATE PRINTED: 03/17/09

CASE NO. GA070933

THE PEOPLE OF THE STATE OF CALIFORNIA
VS.
DEFENDANT 02: OLVIN ANTONIO BOLANOS

INFORMATION FILED ON 11/20/07.

COUNT 01: 664-187(A) PC FEL
COUNT 02: 245(A)(1) PC FEL
COUNT 03: 245(A)(2) PC FEL
COUNT 04: 245(A)(2) PC FEL
COUNT 05: 245(A)(2) PC FEL
COUNT 06: 245(A)(2) PC FEL

ON 03/17/09 AT 900 AM IN NORTHEAST DISTRICT DEPT NEH

CASE CALLED FOR JURY TRIAL

PARTIES: JANICE CLAIRE CROFT (JUDGE) DENIS LEEDS (CLERK)
SUSAN L. VELASQUEZ (REP) ALICE MILRUD (DA)

DEFENDANT IS PRESENT IN COURT, AND REPRESENTED BY JACK JANOFSKY PRIVATE COUNSEL

DEFENDANT ADVISED OF AND PERSONALLY AND EXPLICITLY WAIVES THE FOLLOWING RIGHTS:

TRIAL BY COURT AND TRIAL BY JURY

CONFRONTATION AND CROSS-EXAMINATION OF WITNESSES;

SUBPOENA OF WITNESSES INTO COURT TO TESTIFY IN YOUR DEFENSE;

AGAINST SELF-INCRIMINATION;

DEFENDANT ADVISED OF THE FOLLOWING:

THE NATURE OF THE CHARGES AGAINST HIM, THE ELEMENT OF THE OFFENSE IN THE
INFORMATION AND POSSIBLE DEFENSES TO SUCH CHARGES;

THE POSSIBLE CONSEQUENCES OF A PLEA OF GUILTY OR NOLO CONTENDERE, INCLUDING THE
MAXIMUM PENALTY AND ADMINISTRATIVE SANCTIONS AND THE POSSIBLE LEGAL EFFECTS
AND MAXIMUM PENALTIES INCIDENT TO SUBSEQUENT CONVICTIONS FOR THE SAME OR
SIMILAR OFFENSES;

THE EFFECTS OF PROBATION;

IF YOU ARE NOT A CITIZEN, YOU ARE HEREBY ADVISED THAT A CONVICTION OF THE
JURY TRIAL

PAGE NO. 1

HEARING DATE: 03/17/09

CASE NO. GA070933
DEF NO. 02

DATE PRINTED 03/17/09

OFFENSE FOR WHICH YOU HAVE BEEN CHARGED WILL HAVE THE CONSEQUENCES OF DEPORTATION, EXCLUSION FROM ADMISSION TO THE UNITED STATES, OR DENIAL OF NATURALIZATION PURSUANT TO THE LAWS OF THE UNITED STATES;

THE COURT FINDS THAT EACH SUCH WAIVER IS KNOWINGLY, UNDERSTANDINGLY, AND EXPLICITLY MADE; COUNSEL JOINS IN THE WAIVERS

THE DEFENDANT PERSONALLY WITHDRAWS PLEA OF NOT GUILTY TO COUNT 02 AND PLEADS NOLO CONTENDERE WITH THE APPROVAL OF THE COURT TO A VIOLATION OF SECTION 245(A)(1) PC IN COUNT 02. THE COURT FINDS THE DEFENDANT GUILTY.

COUNT (02) : DISPOSITION: CONVICTED

COURT FINDS THAT THERE IS A FACTUAL BASIS FOR DEFENDANT'S PLEA, AND COURT ACCEPTS PLEA.

THE GANG ALLEGATION IS AMENDED TO READ 186.22(B)(1)(C)PC. DEFENDANT ADMITS THE ALLEGATIONS PURSUANT TO PENAL CODE SECTIONS 186.22(B)(1)(C) AND 12022.7.

PROPOSED SENTENCE:
LOW TERM OF 2 YEARS PLUS 10 YEARS FOR THE GANG ALLEGATION 186.22(B)(1)(C) AND 3 FOR THE GBI 12022.7.

BAIL SET AT NO BAIL.

NEXT SCHEDULED EVENT:
04/13/09 830 AM PROBATION AND SENTENCE HEARING DIST NORTHEAST DISTRICT
DEPT NEH

CUSTODY STATUS: REMANDED TO CUSTODY

2009 AUG 19 AM 11 30

SUPERIOR COURT OF THE STATE OF CALIFORNIA
FOR THE COUNTY OF LOS ANGELES

THE PEOPLE OF THE STATE OF CALIFORNIA,
Plaintiff,

v.

01 JOVANNY PUCCY RUIZ (02/24/1987) (Bk#
9941700),
aka JUVEE,
02 OLVIN ANTONIO BOLANOS (05/07/1989) (Bk#
9941702),
aka MENACE, and
03 JOSE BOLANOS (10/03/1990) (Bk# 9657083)
Defendant(s).

CASE NO. GA070933

Arraignment Hearing
Date: 11/20/2007
Department: NE F

FILED
LOS ANGELES SUPERIOR COURT

NOV 20 2007

JOHN A. CLARKE, CLERK
BY S.A. RUCKER, DEPUTY

INFORMATION
SUMMARY

Ct. No.	Charge	Charge Range	Defendant	Special Allegation	Alleg. Effect
1	PC 664/187(A)	Life	RUIZ, JOVANNY PUCCY	PC 12022(B)(1) PC 186.22(B)(1)(A) PC 12022.7(A)	+1Yr +2,3,4 Yrs. +3 Yrs
			BOLANOS, OLVIN ANTONIO	PC 12022.7(A) PC 186.22(B)(1)(C) PC 12022(B)(1)	+3 Yrs +10 Yrs. +1Yr
			BOLANOS, JOSE	WI 707(D)(1) WI 707(D)(2)(C)(II) PC 186.22(B)(1)(A) PC 12022.7(A) PC 12022(B)(1)	Check Code Check Code +2,3,4 Yrs. +3 Yrs +1Yr
2	PC 245(A)(1)	2-3-4	RUIZ, JOVANNY PUCCY	PC 12022(B)(1) PC 12022.7(A) PC 186.22(B)(1)(A)	+1Yr +3 Yrs +2,3,4 Yrs.
			BOLANOS, OLVIN ANTONIO	PC 12022.7(A) PC 12022(B)(1) PC 186.22(B)(1)(A)	+3 Yrs +1Yr +2,3,4 Yrs.
			BOLANOS, JOSE	WI 707(D)(2)(C)(II) PC 12022(B)(1) PC 12022.7(A) WI 707(D)(1) PC 186.22(B)(1)(A)	Check Code +1Yr +3 Yrs Check Code +2,3,4 Yrs.

3	PC 245(A)(2)	2-3-4	RUIZ, JOVANNY PUCCY	PC 186.22(B)(1)(A) PC 12022.5(A)	+2,3,4 Yrs. +3-4-10
			BOLANOS, OLVIN ANTONIO	PC 186.22(B)(1)(A) PC 12022.5(A)	+2,3,4 Yrs. +3-4-10
4	PC 245(A)(2)	2-3-4	RUIZ, JOVANNY PUCCY	PC 186.22(B)(1)(A) PC 12022.5(A)	+2,3,4 Yrs. +3-4-10
			BOLANOS, OLVIN ANTONIO	PC 186.22(B)(1)(A) PC 12022.5(A)	+2,3,4 Yrs. +3-4-10
5	PC 245(A)(2)	2-3-4	RUIZ, JOVANNY PUCCY	PC 186.22(B)(1)(A) PC 12022.5(A)	+2,3,4 Yrs. +3-4-10
			BOLANOS, OLVIN ANTONIO	PC 186.22(B)(1)(A) PC 12022.5(A)	+2,3,4 Yrs. +3-4-10
6	PC 245(A)(2)	2-3-4	RUIZ, JOVANNY PUCCY	PC 186.22(B)(1)(A) PC 12022.5(A)	+2,3,4 Yrs. +3-4-10
			BOLANOS, OLVIN ANTONIO	PC 186.22(B)(1)(A) PC 12022.5(A)	+2,3,4 Yrs. +3-4-10

The District Attorney of the County of Los Angeles, by this Information alleges that:

COUNT 1

On or about September 14, 2007, in the County of Los Angeles, the crime of ATTEMPTED WILLFUL, DELIBERATE, PREMEDITATED MURDER, in violation of PENAL CODE SECTION 664/187(a), a Felony, was committed by JOVANNY PUCCY RUIZ, OLVIN ANTONIO BOLANOS and JOSE BOLANOS, who did unlawfully and with malice aforethought attempt to murder JORGE GAULITO, a human being .

It is further alleged that the aforesaid attempted murder was committed willfully, deliberately and with premeditation within the meaning of Penal Code section 664(a) and is a serious felony pursuant to Penal Code section 1192.7(c).

* * * * *

COUNT 2

On or about September 14, 2007, in the County of Los Angeles, the crime of ASSAULT WITH A DEADLY WEAPON, in violation of PENAL CODE SECTION 245(a)(1), a Felony, was committed by JOVANNY PUCCY RUIZ, OLVIN ANTONIO BOLANOS and JOSE BOLANOS, who did willfully and unlawfully commit an assault upon JORGE GAULITO with a deadly weapon, to wit, knife.

"NOTICE: The above offense is a serious felony within the meaning of Penal Code section 1192.7(c)."

It is further alleged as to count(s) 1 and 2 that in the commission of the above offense the said defendant(s), JOVANNY PUCCY RUIZ, JOSE BOLANOS and OLVIN ANTONIO BOLANOS, personally inflicted great bodily injury upon JOSE GUALITO, not an accomplice to the above offense, within the meaning of Penal Code Section 12022.7(a) and also causing the above offense to become a serious felony within the meaning of Penal Code Section 1192.7(c)(8).

It is further alleged as to count(s) 1 and 2 that in the commission and attempted commission of the above offense, the said defendant(s), OLVIN ANTONIO BOLANOS, JOVANNY PUCCY RUIZ and JOSE BOLANOS, personally used a deadly and dangerous weapon(s), to wit, knife, said use not being an element of the above offense, within the meaning of Penal Code Section 12022(b)(1) and causing the above offense to be a serious felony within the meaning of Penal Code section 1192.7(c)(23).

It is further alleged, pursuant to subdivision (d)(1) of section 707 of the Welfare and Institutions code, that the defendant was a minor who was at least 16 years of age the time of the commission of the above offenses.

It is further alleged, pursuant to subdivision (d)(2)(c)(ii) of section 707 of the Welfare and Institutions Code, that the defendant was a minor who was at least 14 years of age at the time of the commission of the above offenses, and that the above offenses were committed for the benefit and at the direction of, and in association with a criminal street gang, and with the intent to promote, further, and assist in criminal conduct by gang members.

* * * * *

COUNT 3

On or about September 14, 2007, in the County of Los Angeles, the crime of ASSAULT WITH A FIREARM, in violation of PENAL CODE SECTION 245(a)(2), a Felony, was committed by JOVANNY PUCCY RUIZ and OLVIN ANTONIO BOLANOS, who did willfully and unlawfully commit an assault on JIDE S. AKINSHILO with a firearm.

It is further alleged that, pursuant to Penal Code section 1203.095, there is a presumptive minimal jail time required if you are convicted of this charge.

"NOTICE: The above offense is a serious felony within the meaning of Penal Code section 1192.7(c)."

* * * * *

COUNT 4

On or about September 14, 2007, in the County of Los Angeles, the crime of ASSAULT WITH A FIREARM, in violation of PENAL CODE SECTION 245(a)(2), a Felony, was committed by JOVANNY PUCCY RUIZ and OLVIN ANTONIO BOLANOS, who did willfully and unlawfully commit an assault on JOSHUA SALCIDO with a firearm.

It is further alleged that, pursuant to Penal Code section 1203.095, there is a presumptive minimal jail time required if you are convicted of this charge.

"NOTICE: The above offense is a serious felony within the meaning of Penal Code section 1192.7(c)."

* * * * *

COUNT 5

On or about September 14, 2007, in the County of Los Angeles, the crime of ASSAULT WITH A FIREARM, in violation of PENAL CODE SECTION 245(a)(2), a Felony, was committed by JOVANNY PUCCY RUIZ and OLVIN ANTONIO BOLANOS, who did willfully and unlawfully commit an assault on RAUL DIAZ with a firearm.

It is further alleged that, pursuant to Penal Code section 1203.095, there is a presumptive minimal jail time required if you are convicted of this charge.

"NOTICE: The above offense is a serious felony within the meaning of Penal Code section 1192.7(c)."

* * * * *

COUNT 6

On or about September 14, 2007, in the County of Los Angeles, the crime of ASSAULT WITH A FIREARM, in violation of PENAL CODE SECTION 245(a)(2), a Felony, was committed by JOVANNY PUCCY RUIZ and OLVIN ANTONIO BOLANOS, who did willfully and unlawfully commit an assault on HARVESTER YORK with a firearm.

It is further alleged that, pursuant to Penal Code section 1203.095, there is a presumptive minimal jail time required if you are convicted of this charge.

"NOTICE: The above offense is a serious felony within the meaning of Penal Code section 1192.7(c)."

It is further alleged pursuant to Penal Code section 186.22(b)(1)(C) that the above offense was committed for the benefit of, at the direction of, and in association with a criminal street gang with the specific intent to promote, further and assist in criminal conduct by gang members.

It is further alleged pursuant to Penal Code section 186.22(b)(1)(A) as to count(s) 1, 2, 3, 4, 5 and 6 that the above offense was committed for the benefit of, at the direction of, and in association with a criminal street gang with the specific intent to promote, further and assist in criminal conduct by gang members.

It is further alleged as to count(s) 3, 4, 5 and 6 that in the commission and attempted commission of the above offense, the said defendant(s), OLVIN ANTONIO BOLANOS and JOVANNY PUCCY RUIZ, personally used a firearm(s), to wit: handgun, within the meaning of Penal Code sections 1203.06(a)(1) and 12022.5(a) also causing the above offense to become a serious felony pursuant to Penal Code section 1192.7(c)(8) and a violent felony within the meaning of Penal Code section 667.5(c)(8).

* * * * *

NOTICE: Conviction of this offense will require the defendant to provide DNA samples and print impressions pursuant to Penal Code sections 296 and 296.1. Willful refusal to provide the samples and impressions is a crime.

THIS INFORMATION CONSISTS OF 6 COUNT(S).

Filed in Superior Court,
County of Los Angeles

DATED: _____

STEVE COOLEY
DISTRICT ATTORNEY
County of Los Angeles,
State of California

BY: _____

DEPUTY DISTRICT ATTORNEY

/OG

Pursuant to Penal Code Section 1054.5(b), the People are hereby informally requesting that defense counsel provide discovery to the People as required by Penal Code Section 1054.3.